

EP 2319537



SUPPLEMENTARY EUROPEAN SEARCH REPORT

Application Number
EP 09 76 6685

DOCUMENTS CONSIDERED TO BE RELEVANT			
Category	Citation of document with indication, where appropriate, of relevant passages	Relevant to claim	CLASSIFICATION OF THE APPLICATION (IPC)
X	DATABASE TKDL [Online] 1811, "Habb Waasli", XP002666404, Database accession no. MH5/2791 * the whole document *	1-11	INV. A61K45/00 A61K31/11 A61K31/34 A61K36/00 A61K38/22 A61P7/10 A61P17/16
X	DATABASE TKDL [Online] 1811, "Itreefal Ghudadi", XP002666405, Database accession no. MH1/3719 * the whole document *	1-11	A61P43/00 A61K31/343 A61K38/18 A61K36/254 A61K36/54
X	DATABASE TKDL [Online] 1911, "Kukkilathy Vadakam", XP002666406, Database accession no. GP03/245 * the whole document *	1-11	TECHNICAL FIELDS SEARCHED (IPC) A61K A61P
X	US 6 607 756 B1 (ROSENSTIEL LEONIE [US]) 19 August 2003 (2003-08-19) * the whole document * * abstract * * column 1, line 26 - column 2, line 23 * * column 2, line 56 - line 67 * * column 3, line 25 - line 35 * * column 4, line 9 - line 27 * * tables 1,2 * * example 2 *	1-11	
The supplementary search report has been based on the last set of claims valid and available at the start of the search.			
Place of search Munich		Date of completion of the search 28 December 2011	Examiner Economou, Dimitrios
CATEGORY OF CITED DOCUMENTS X: particularly relevant if taken alone Y: particularly relevant if combined with another document of the same category A: technological background O: non-written disclosure P: intermediate document T: theory or principle underlying the invention E: earlier patent document, but published on, or after the filing date D: document cited in the application L: document cited for other reasons &: member of the same patent family, corresponding document			

EPO FORM 1503 03.92 (P04C04)

**SUPPLEMENTARY
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Application Number
EP 09 76 6685

DOCUMENTS CONSIDERED TO BE RELEVANT			
Category	Citation of document with indication, where appropriate, of relevant passages	Relevant to claim	CLASSIFICATION OF THE APPLICATION (IPC)
X	WO 2008/059310 A1 (AVESTHA GENGRAINE TECH PVT LTD [IN]; PATELL VILLOO MORAWALA [IN]) 22 May 2008 (2008-05-22) * the whole document * * page 3, paragraph 3 * * example 1 * * claims 1-4,6 * -----	6,7,9,10	
			TECHNICAL FIELDS SEARCHED (IPC)
The supplementary search report has been based on the last set of claims valid and available at the start of the search.			
Place of search		Date of completion of the search	Examiner
Munich		28 December 2011	Economou, Dimitrios
CATEGORY OF CITED DOCUMENTS X : particularly relevant if taken alone Y : particularly relevant if combined with another document of the same category A : technological background O : non-written disclosure P : intermediate document T : theory or principle underlying the invention E : earlier patent document, but published on, or after the filing date D : document cited in the application L : document cited for other reasons & : member of the same patent family, corresponding document			

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EPO FORM 1503 03/82 (P04C04)

The examination is being carried out on the **following application documents**

Description, Pages

1-13 filed with entry into the regional phase before the EPO

Claims, Numbers

1-11 received on 18-04-2011 with letter of 18-04-2011

Drawings, Sheets

1/2, 2/2 filed with entry into the regional phase before the EPO

1). The application lacks unity within the meaning of Article 82 EPC, for the following reasons:

The problem underlying the present application was the provision of uses (claims 1-5) and compositions for stabilizing lymphatic vessels. This problem appears to be solved by the use of the Tie2 activators mentioned in claims 2 and 7. However, D1 (=Tuomas Tammela et al., "Angiopoietin-1 promotes lymphatic sprouting and hyperplasia", Blood, 2005, vol. 105, p. 4642-4648) already discloses that angiopoietin-1 binds to Tie-2, stabilizing the formation of lymph vessel networks and the continuity of endothelial cells in lymph vessels (see abstract and page 4644, right column, line 4 to page 4645, left column, line 10) and suggests that angiopoietin-1 may be useful in treating edema (see abstract and page 4647, right column, lines 21-32). Thus, the requisite unity of invention does not exist.

Hence the Examining Division considers that the following separate inventions or groups of inventions are not so linked as to form a single general inventive concept:

1). Claims 1-2 (partially), 3-4, 5-7 (partially) 8-9, 10-11 (partially)

Uses and composition for stabilizing lymphatic vessels comprising extracts of Cinnamomum species.

2). Claims 1-2 (partially), 5-7(partially), 10-11 (partially)

Uses and composition for stabilizing lymphatic vessels comprising extracts of Siberian ginseng.

3). Claims 1-2 (partially), 5-7(partially), 10-11 (partially)

Uses and composition for stabilizing lymphatic vessels comprising angiopoietin-1

4). Claims 1-2 (partially), 5-7(partially), 10-11 (partially)

Uses and composition for stabilizing lymphatic vessels comprising syringaresinol

In accordance with Rule 164(1) EPC the supplementary search report has been drawn up for those parts of the application which relate to the invention, or group of inventions, first mentioned in the claims.

The applicant is invited to limit the application to the invention covered by the European supplementary search report.

The subject-matter to be excised may be made the subject of one or more divisional applications. The divisional applications must be filed with the European Patent Office in Munich, The Hague or Berlin and shall be filed in the language of the proceedings relating to the present application (cf. Article 76(1) and Rule 36(2) EPC). The time limit for filing divisional applications (Rule 36(1) EPC) must be observed.

2). The subject - matter of claims 1-5 concerns a method of treatment of the human or animal body by therapy practised on the human or animal body, which is excluded from patentability (Article 53(c) EPC). The claims as presently formulated are thus not allowable and should be either suppressed or reworded in the form of a product for use in such a method according to Articles 54(4) and 54(5) EPC (Guidelines C -IV, 4.8).

3). Use claims 1-5 even reworded under art. 54(4)/(5) EPC would be not acceptable under Article 84 EPC. The therapeutic application is functionally defined by a mechanism of action ("stabilizing lymphatic vessel") which does not allow any practical application in the form of a defined, real treatment of a pathological condition (disease) (C-III, 4.22 and C-IV, 4.8).

The objection could be overcome by either introducing into the claim a list of pathological conditions (diseases) cited in the application, or by showing that means are available which would allow the skilled person to recognise which additional condition/s would fall within the functional definition (C-III, 6.5).

4). Claims 6-10 are not formulated in the form of a product for use in a medical method according to Articles 54(4) and 54(5) EPC (Guidelines C -IV, 4.8). Hence, the subject-matter of claims 6-10 discloses nothing more than the products per se.

Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D2 (=NN: "Habb Waasli", TKDL, no. MH5/2791 1 January 1811 (1811-01-01), XP002666404, Retrieved from the Internet: URL:http://www.tkdl.res.in/tkdl/LangDefault/Formulation/Member_Docs/BC/unani/highlight.asp?a=/tkdl/langdefault/formulation/member_docs/bc/unani/mh5-2791.asp&b=mh5/2791&c=F&stypePrint=GLOBAL-SIMPLE-SEARCH?str=Global [retrieved on 2011-12-28]) refers to a formulation containing *Cinnamomum cassia* along with few other ingredients used for the treatment of cervical lymphadenitis and lymphadenitis through oral administration. Hence, in the light of **D2** the subject-matter of claims 6-9 and 11 is not novel wherein the subject-matter of claim 10 does not involve an inventive step.

D3 (=NN: "Itreefal Ghudadi", TKDL, no. MH1/3719 1 January 1811 (1811-01-01), XP002666405, Retrieved from the Internet: URL:http://www.tkdl.res.in/tkdl/LangDefault/Formulation/Member_Docs/BC/unani/highlight.asp?a=/tkdl/langdefault/formulation/member_docs/bc/unani/mh1-3719.asp&b=mh1/3719&c=F&stypePrint=GLOBAL-SIMPLE-SEARCH?str=Global [retrieved on 2011-12-28]) refers to a formulation containing *Cinnamomum cassia* along with few other ingredients used for the treatment cervical lymphadenitis

through oral administration. Hence, in the light of **D3** the subject-matter of claims 6-9 and 11 is not novel wherein the subject-matter of claim 10 does not involve an inventive step.

D4 (=NN: "Kukkilathy Vadakam", TKDL, no. GP03/245 1 January 1911 (1911-01-01), XP002666406, Retrieved from the Internet: URL:http://www.tkdil.res.in/tkdil/LangDefault/Formulation/Member_Docs/BC/siddha/highlight.asp?a=/tkdl/langdefault/formulation/member_docs/bc/siddha/gp03-245.asp&b=gp03/245&c=F&stypePrint=GLOBAL-SIMPLE-SEARCH?str=Global [retrieved on 2011-12-28]) refers to a formulation containing *Cinnamomum cassia* along with few other ingredients used for the treatment of edema and inflammation through oral administration. Hence, in the light of **D5** the subject-matter of claims 6-9 and 11 is not novel wherein the subject-matter of claims 10 does not involve an inventive step.

D5 (=US 6 607 756) discloses a herbal composition that aids in relief of symptoms caused by edema comprising cinnamon essential oil. Hence, in the light of **D5** the subject-matter of claims 6-9 and 11 is not novel wherein the subject-matter of claim 10 does not involve an inventive step.

D6 discloses an aqueous extract of *Cinnamomum ceylanicum*. Hence, the subject-matter of claims 6-7 and 9-10 is not novel.